

**SFIO Vs Adarsh Buildestate etc. COMA No.5/2019
CNR No. : HRGR-01-007022/2019**

**Present : Sh. Lokender Singh Raghav, Senior Standing Counsel,
Sh. Hari Kishan, Prosecutor, along with Sh. Prashant
Baliyan, Investigating Officer, complainant, SFIO.**

Accused Companies, A-1 to A-70

**Present : Accused Rohit Modi, Authorized Representative of
the companies in custody.**

Accused Rohit Modi produced in execution of production warrant. He is also summoned in his personal capacity as accused No.A-123 for commission of various offences including offence under Section 447 of the Companies Act, 2013. As such his presence is marked as AR of the above referred companies.

Accused, A-140, Surender Singh

**Present : Accused, A-140 Surender Singh, in person in his personal
capacity as well as being Director of Accused companies,
A-81 &A-82.
Sh. Varun Tandon, counsel for applicant-accused.**

Reply of the application for regular bail after surrendering in the court filed by the applicant-accused Surender Singh, filed. During the course of arguments it comes out that another Director of accused companies A-81 and A-82 namely Akshat Singh has also been summoned for the similar offences. It is stated by the counsel for the applicant-accused Surender Singh that since the case of the applicant-accused Akshat Singh is on the same footing relating to the same companies till the appearance of Akshat Singh, who may appear by the next date of hearing, the matter be postponed. Even learned counsel for the complainant has not opposed this plea, who also submitted that he also wants to verify certain issues raised today. It is a fact that in this case companies and accused have been summoned and their bail plea will be similar in a particular set of companies and stating anything on the basis of one application will obviously affect the case against the other. As such in the interest of

justice, the bail application in hand is adjourned is adjourned to 20.8.2019 for arguments. The interim bail already granted to the applicant-accused in the meanwhile is extended till then on the same terms and conditions.

Accused, A-130, Jainam Rathod

Present : Sh. Salim Malik, Advocate, alongwith Sh. Gulshan Sharma, local Advocate, for applicant-accused Jainam Rathod, who is in person (on interim bail).

Reply of the application for regular bail filed. Copy supplied. Since the allegations against the present applicant-accused are similar to the allegations against other accused, as such, bail application of this applicant-accused will also be heard alongwith the connected bail applications on 20.8.2019. In the meanwhile the interim bail granted to the applicant-accused is also extended till then on the same terms and conditions.

Accused, A-154, Bharat Kumar Mardia

Present : Sh. Sanjeev Jain, counsel for applicant-accused.

Reply of the application for anticipatory bail filed on behalf of applicant-accused Bharat Kumar Mardia, filed. Copy supplied. During the course of arguments learned counsel for the applicant-accused tried to argue that there is no summoning order against the present applicant-accused for commission of offence under Section 447 of the Companies Act, 2013 for the violation of the provisions of Section 73 and 74 as punishable under the proviso of Section 76-A of the Companies Act. The Public Prosecutor and the counsel for the complainant want to verify the file and requested a date. Accordingly the case is adjourned to 20.8.2019 for arguments alongwith other bail applications.

Accused, A-150, A-158, A-159, A-161, A-179, A-182, A-183, A-184, A-185 and A-186.

Present : All the aforesaid applicants-accused in person on interim bail alongwith Sh. Amit Kumar, Advocate.

Reply of bail applications filed on behalf of all the above applicants-accused seeking regular bail after surrendering before the court, filed. In these bail applications the issue is whether offence committed under Section 448 as punishable under Section 447 of the Companies Act, is made out against the applicants-accused or not as it is alleged that all these accused were the Directors of the Adarsh Group of Companies and they signed the account books without any malafide intentions.. Accordingly on the request of both the parties detailed arguments will be heard on 20.8.2019. In the meanwhile interim bail granted to the applicants-accused is also extended till then on the same terms and conditions.

Accused, A-176, Raj Kumar Modi

Present : Sh. Rajesh Ranjan, Advocate, for applicant-accused Raj Kumar Modi, who is not present.

Reply of the bail application filed by the applicant-accused Raj Kumar Modi seeking regular bail after surrendering before the court, filed. Copy supplied. Applicant-accused Raj Kumar Modi is not present. An application for exemption of his personal appearance has been filed on the plea that he is not well with a medical certificate. Admittedly this accused is already on interim bail and it is a fact that the bail applications of other accused similarly situated have been adjourned to 20.8.2019. As such arguments on the bail application of the present applicant-accused will also be heard on 20.8.2019 alongwith the connected bail applications. However, in the meanwhile extending interim bail to him, the personal appearance of applicant-accused is exempted for today only and he is directed to appear on the date fixed.

Accused, who are in custody in other cases and in this case, A-113, A-114, A-115, A-117, A-120, A-122, A-123, A-125, A-126, A-131, A-134, A-142.

Present : Sh. Aditya Singla, Advocate alongwith local counsel
Sh. Vishal Gupta, Advocate, for accused A-113, A-114,

A-115, A-117, A-120, A-122, A-123, A-125, A-126,
A-131, A-134 and A-142.

Accused, A-113 Mukesh Modi, A-114, Rahul Virendra Modi, A-117, Priyanka Modi have been produced after expiry of the judicial remand of 15 days. As such pending further proceedings they are remanded to judicial custody and be produced on 27.8.2019 for further proceedings.

Accused, A-115 Vivek Harivyasi has been produced by the jail authorities through Video conferencing conducted by the undersigned. As such pending further proceedings he is remanded to judicial custody and be produced on 27.8.2019 for further proceedings.

As per productions warrants, accused A-120, Vaibhav Lodha, A-122, Virender Modi, A-123, Rohit Modi, A-125, Rajeshwar Singh, A-126, Bharat Modi, A-131, Ishwar Singh Sandal, A-134 Vivek Purohit and A-142, Bharat Das Vaishnav, have been produced by the jail authorities. Since they have been summoned for various offences including offence under Section 447 of the Companies Act in their personal capacity and no bail application has been filed on their behalf, as such let they be taken into custody in this case also and pending further proceedings they are remanded to judicial custody till 27.8.2019 and be produced for further proceeding. Till then they be kept in the Jaipur Jail where they have already lodged with direction to the Superintendent to produce them before this court on the date fixed without any failure, for further proceedings.

13.08.2019

(ashok)

Sd/-
(Ravi Kumar Sondhi)
Sessions Judge, Gurugram
(UID No.HR0026).